

Date 3-9-2005

The Estate Officer
Cantonment
Nasirabad

Subject:- Reg. House No. 532 and 533 (Narain s/o Gordhan)

Sir

Kindly refer to my applications and hearing dates in above properties. I draw your kind attention to a mis-classification of my property No. 532 (area 405 sq. ft.) now lying open land adjoining to my house No. 533 (area 1120 sq. ft.). My property bearing No. 532 as per books is classified as B(4) building site which is wrongly shown. I respectfully refute the B(4) classification ^{by opening of} entry in Cantt. books reg. No. 532. The mistake erroneously cropped up because the information was not collected from the owner in 1930s while conducting survey. The owner was far away with family, locking his house at Nasirabad serving his Rly job at Bikaner while survey conducted. This was a cause without which this mis-classification would not have been caused as such. Property No. 532 (area 405 sq. ft.) therefore suffered very badly under B(4) classification by wrong reporting during survey. My revered father urged the administration several times with reminders, to rectify error by transferring & restoring 405 sq. ft. land of No. 532 to its original B(3) class (i.e. identical to my house No. 533 situated adjoining) by recasting necessary correction in books to avoid ambiguity. Relevant documents in proof of title reg. property No. 532 belonging around 1920s already submitted 50 years way back, by my revered father late Narain s/o Gordhan. Proposed construction plans were put up as per necessity several times for sanction on 532 land but remained uncommunicated. The ruins of old dilapidated kuchha dwelling house on 532 washed away gradually by rain storms over the years. Eventually premises of 532 reduced to open land. Safeguarding & stopping trespass through our premises from road side, kuchha-pucca barbed wire fencing/wall etc. was necessarily provided. The Cantt. Board validating the title of property No. 532, the assessment & imposition of the house tax started which is being paid regularly since point of beginning to date against cantonment's demand notice, (details of tax receipts also enclosed along proposed construction plans in 1967). Nil Tax is outstanding upto March 2006 against both properties 532 & 533. Again administration is highly requested to look into the matter seriously for transfer & regularise long pending misclassification of property No. 532 i.e. from B(4) to class B(3). Several requests followed with reminders are on record file consequently higher authority has issued an order to maintain a status quo position. However it cannot prevail indefinitely. Therefore it has to be resolved finally & justifiably to bring an end to this case pending over half a century.

The case does not pertain to house No. 533 at all. The Cantt. overseer's report refers to encroachment, ~~rather it is encroachment~~ on 532 (survey No. 280/751) land which is basically not encroachment, rather it could be seen in the light of unauthorized construction under constraints.

I pray with regards to your honour for needful justice at an early date, thanking you highly.

Yours Faithfully,

R. C. Sharma

(R.C. SHARMA) 3-9-2005

Address 1093A Belupura Rd. Adarsh Nagar AJMER